

		(Langedyk Decl. ¶¶ 5-6.) The agreement was signed by both parties and filed on June 19, 2025. (ROA 24.) The action was ordered dismissed on July 22, 2025 pursuant to the parties’ agreement and the Court retained jurisdiction under section 664.6. (ROA 32.) There is no indication that the agreement is not valid or binding. The Court finds that Plaintiff has established that the parties entered into a valid and binding settlement agreement and Defendant is in breach of its terms. As a result of that breach, Plaintiff is entitled to have the prior dismissal of this action set aside and judgment entered in its favor. In light of the above, the Motion is GRANTED. The July 22, 2025 dismissal is ORDERED set aside and judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$51,353.03. Moving party to give notice.
107	Laborin vs. Park, 2024-01422253	MOTION TO BIFURCATE – DENIED Defendant Samuel Park (“Defendant”) moves pursuant to Code of Civil Procedure section 598 and 1048(b) to bifurcate the liability and damages phases of trial. Code of Civil Procedure section 598 provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby. . . .” (Code Civ. Proc., § 598.) Code of Civil Procedure section 1048(b) states: “[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).) Thus, the Court must analyze the following when determining whether to bifurcate issues: (1) convenience of the witnesses, (2) the ends of justice, (3) the economy

and efficiency of handling the litigation, and (4) prejudice.

“A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed absent an abuse of that discretion.” (Antelope Valley Groundwater Cases (2020) 59 Cal.App.5th 241, 273.) Court have denied bifurcation when “the issues were not ‘that complex’, and that it had ‘great confidence in the ability of the jury to follow the court’s instructions.’” (Downey Savings & Loan Assn. v. Ohio Casualty Ins. Co. (1987) 189 Cal.App.3d 1072, 1086.)

Here, the Court finds bifurcation unnecessary. Defendant presents no admissible evidence that he will prevail on the merits of liability at trial. Defendant only presents defense counsel’s interpretation of Plaintiff’s deposition testimony.

The Court also finds that this case is not so complicated such that the liability and damages portions of the trial should be tried separately. This is a straightforward motor vehicle negligence case. The Court is confident that the jury will be able to follow the Court’s instructions regarding the analysis to find liability and is not persuaded by Defendant’s argument that they jury may be “influenced by potentially emotional damages evidence.” The Court does not find that Defendant will suffer undue prejudice if the case is not bifurcated.

Likewise, as Plaintiff points out, damages are an element of the causes of action asserted against Defendants. Thus, the Court finds that convenience of the witnesses and economy and efficiency of handling the litigation would not necessarily be served by bifurcating the issues of liability and damages.

Plaintiff to give notice.

108	Mifflin v. Raskin, 2025-01517521	MOTION TO STRIKE PUNITIVE DAMAGES CLAIMS – GRANTED WITH 20 DAYS LEAVE TO AMEND Defendants Joseph Ryan Raskin and Raskin Built, LLC move to strike plaintiffs Justin Mifflin and Camille Birrer’s prayer for punitive damages in Paragraph 14., subdivision a.(2) of their complaint. (ROA 16) Motion to Strike is GRANTED with 20 days leave to amend. (Code Civ. Proc., §435; Civ. Code, § 3294.) Here, there are no detailed facts pled within the complaint at all, let alone facts supporting an intentional tort cause of action or a claim for punitive damages. In the Opposition, Plaintiffs make arguments which are outside the four corners of the Complaint, which is not permissible in connection with a motion to strike. (Code Civ. Proc., § 437; CPF Agency Corp. v. R&S Towing Service (2005) 132 Cal.App.4th 1014, 1032 [grounds for motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice].) The Declaration of Attorney Justin Trad, and exhibits attached thereto were not considered. Defendant to give notice.
109	Miramar Food Hall Real Estate LLC v Big Picture Concepts Design LLC, 2023-01366805	DEFAULT PROVE-UP HEARING
110	Oakland JMO, LLC. vs. Hybrid Battery Place, Inc., 2022-01271085	MOTION FOR SUMMARY JUDGMENT/ ADJUDICATION Defendant State Farm General Insurance Company (“Defendant”) filed a motion for summary judgment as to Plaintiff Hybrid Battery Inc.’s cause of action for breach of the implied covenant of good faith and fair dealing and claim for punitive damages.